



NOVA**WEB3** CYBER AND TECHNOLOGY ERRORS & OMISSIONS

INSURANCE POLICY

RELM

RELM CLAIMS REPORTING INSTRUCTIONS AND CYBER INCIDENT RESPONSE

WHAT TO DO IN THE EVENT OF A CLAIM

All claims which might reasonably be expected to fall within the coverage provided by your Cyber and/or Tech E&O Insurance Policy should be immediately reported to the Relm Claims Team at:

claims@relminsurance.com

1-786-742-5416

Relm Insurance Solutions Inc.
3501 Concord Road, Suite 120
York, PA 17402

To expedite the claims handling process, please provide the following information when reporting:

- 1 Named Insured
- 2 Policy Number
- 3 Insured Contact

Within 24 hours, you will receive an electronic acknowledgment of the claim that includes the claim number and direct contact information for your assigned claim handler.

WHAT TO DO IN THE EVENT OF A CYBER INCIDENT

If you suspect a cyber security incident has occurred or is in progress, immediately contact our 24/7 Cyber Incident Response Hotline:

1-888-307-5128 (Toll-Free)

relmcyber@c-wlaw.com

A breach coach is ready to help you recover from a cyber security incident utilizing an expert panel of pre-approved incident response vendors. Bringing our expert resources into the process can help ensure coverage for critical risks, future potential claims management, and the latest developments in terms and conditions.

IMPORTANT

Contacting the Cyber Incident Response Hotline does not constitute notice of a claim to Relm. For claim notification requirements, refer to your policy. Also, it is important to first contact the Relm claims team and breach coach before hiring your own incident response vendors.

CYBER SECURITY INCIDENT ROAD MAP

Scenario – Your organization experiences an actual or suspected cyber incident. Follow the steps below:

1 Gather your internal team and review your incident response plan

2 Immediately call our 24/7 Incident Response Hotline at 1-888-307-5128 to get these necessary actions started

- Connect with the breach coach
- Triage the incident
- Conduct an initial investigation into the cause of the incident
- Recommend and assist with formal claims notification to Relm
- Connect you with an extensive global network of cyber incident response vendors for the below services:
 - Computer forensics
 - IT restoration
 - Legal assistance
 - Call center set up
 - Notification to ICO and affected individuals
 - Monitoring services
 - Public relations
 - Ransom negotiations
 - Data mining

3 Report the claim in writing to the Relm Claims Team

4 The Relm Claims Team and Breach Coach will walk you and your insurance broker through every step of responding to the incident until the matter is resolved

INCIDENT RESPONSE VENDOR PANEL

A cyber incident's potential reputational damage, operational disruption, and financial consequences can be significant. The speed and efficacy of a company's response to a cyber incident is a key factor in containing loss and preserving goodwill. To assist our clients in addressing complex cyber challenges, Relm has assembled an extensive global network of best-in-class incident response vendors:

IMPORTANT

The Relm Claims Team and breach coach are here to guide you if you suspect a cyber security incident has occurred or is in progress.

Contacting the incident response vendor does not constitute notice of a claim to Relm. For claim notification requirements, refer to your Policy.

Please contact the Relm Claims Team and our pre-approved breach coach before hiring your own incident response vendors. If you elect to use a service provider not listed, to be reimbursed for your expenses, you must give notice of your election and obtain prior written approval from the Relm Claims Team before incurring such expenses. Relm will not be responsible for services outside of the scope of your coverage or the re-performance of services.

Relm shall not be a party to any agreement entered into between you and any service provider. Service providers are independent contractors and are not agents or employees of Relm. Relm assumes no liability arising out of any services rendered by a service provider.

Relm shall not be entitled to any rights or subject to any obligations or liabilities set forth in any agreement entered between you and any service provider. You are under no obligation to implement the recommendations of any service provider. Unless otherwise stated in your Policy, you are under no obligation to contract for services with an approved service provider. Payment for services provided by any service provider is your responsibility.

This listing has been compiled for your convenience. No endorsement or recommendation of any of the service providers listed is intended to be, nor should this listing be construed as an endorsement or recommendation of any service provider. Relm does not guarantee the performance or quality of the services provided. You should perform your own independent evaluation of any service provider.

INCIDENT RESPONSE VENDORS

Breach Counsel

Cipriani and Werner

www.c-wlaw.com

412-563-2500

650 Washington Road
Ste 700, Pittsburgh, PA

Mullen Coughlin

www.mullen.law

844-885-1574

426 W. Lancaster Ave.
Ste 200, Devon, PA 19333

Data Mining

Arete

www.areteir.com

866-210-0955

Moxfive

www.moxfive.com

833-568-6695

Public Relations

Edelman

www.edelman.com

312-240-3000

FleishmanHillard

www.fleishmanhillard.com

312-729-3700

Ransom Coach

Coveware

www.coveware.com

203-442-4050

Arete

www.areteir.com

866-210-0955

Computer Forensics and IT Restoration

Arete

www.areteir.com

866-210-0955

Charles River Associates

www.crai.com

617-425-3000

Kroll

www.kroll.com/en

877-300-6816

Stroz Friedberg

www.aon.com

212-981-6540

Tracepoint

www.tracepoint.com

844-872-2304

CrowdStrike

www.crowdstrike.com

888-512-8906

ID Monitoring and Notification

Experian

www.experian.com

888-397-3742

Kroll

www.kroll.com/en

877-300-6816

Blockchain Forensics & Cryptocurrency Recovery

CipherBlade

www.cipherblade.com

575-201-8606



THE FOLLOWING BREACH PREVENTION SERVICES ARE AVAILABLE

Discounts on Expert Virtual CISO (vCISO) Services

vCISO services connect you with seasoned cybersecurity experts Chief Information Security Officers, ensuring that your organization benefits from unparalleled security expertise without the financial burden of a full-time executive hire

Discounts on IT Security Solutions

Access to best-in-class IT security tools at discounted prices (e.g., EDR Solutions, Cloud backup solutions, MFA solutions [via our online portal])

Discounts on IT Infrastructure Vulnerability Scanning

An expert will evaluate your IT infrastructure and identify vulnerabilities that are open to potential exploits by hacks

Discounts on Network Penetration Tests

An expert pen tester will simulate real-life cyber threats to evaluate your defenses and assess your cybersecurity readiness

Discounts on Cyber Event Tabletop Exercise Orientation

Spend 1-2 hours with a breach coach to walk through a cyber event scenario; ensure your incident response plan will respond efficiently and help better maximize your cyber insurance benefits

Contact us to access these services

THE FOLLOWING BREACH PREVENTION INFORMATION IS AVAILABLE VIA OUR ONLINE PORTAL



News Center

Real-time monitoring of breach events, cyber news, threat intelligence, and security, legal, and compliance insights



Risk Manager Tools

Loss modeling tools, cost and claims payout calculators, incident root cause analysis, and over 20 sample policy templates (e.g., Information Security Policy, Privacy Policy, Remote Working Policy)



Cybersecurity Awareness

Resources for ongoing employee education, including general security awareness, anti-phishing, and IP/trade secrets



Learning Center

Library of best-practices articles, whitepapers and tutorial videos



Ransomware Resources

Education and guidance on improving defenses to prevent or mitigate malicious attacks



Incident Roadmap

Suggested steps to take following a network or data breach incident

Relm policyholders can access these proactive risk control and breach prevention services via our online portal – cyber.relminsurance.com

FOLLOW THESE STEPS TO REGISTER

- 1 Using a web browser, navigate to: cyber.relminsurance.com
- 2 Complete the New User Registration section, your access code is 401874
- 3 Please note that cyber.relminsurance.com is a private site for policyholders only. Do not share your access code with anyone outside your organization. This portal contains a directory of experienced cyber risk management and breach services providers. Unless otherwise indicated or approved, payment for services provided by these companies is your responsibility

NOVAWEB3: CYBER AND TECHNOLOGY ERRORS & OMISSIONS INSURANCE
(FORM NOVAWEB32024-0.1)

This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as a surplus line coverage pursuant to the Tennessee insurance statutes.

Date: August 05, 2025

POLICY NUMBER: RUSPTEOCY7292025 **INSURER:** Trisura Specialty Insurance Company
RENEWAL OF: RILPTEOCY7292024 **ADDRESS:** 210 Park Avenue, Suite 1300,
Oklahoma City, OK 73102

DECLARATIONS

ITEM 1. NAMED INSURED: Ephemera Global Inc.

ADDRESS: 1131 4th Ave S #230 Nashville, TN 37210, United States

ITEM 2. POLICY PERIOD: **INCEPTION DATE:** July 13, 2025

EXPIRATION DATE: July 13, 2026

Both dates at 12:01 am local time at the Address in Item 1.

INSURER AND CAPACITY: Trisura Specialty Insurance Company. 100% (Rated A- by AM Best)

PRODUCER: Angie Chong

S/L LICENSE: 18953971

ITEM 3. INSURING AGREEMENT SUMMARY

AGGREGATE POLICY LIMIT FOR ALL INSURING AGREEMENTS: **USD 5,000,000**

Insuring Agreements	Limit (each claim or insured event)	Retention (each claim or insured event)	Retroactive Date	Prior & Pending Date
1. Technology Liability				
A. Technology Services Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
B. Technology Product Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
2. Media Liability				
A. Media Activities Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
B. Media Services Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
3. Payment of Fees				
A. Refund of Fees	USD 100,000	USD 100,000	October 06, 2022	October 06, 2022
B. Unpaid Fees	USD 100,000	USD 100,000	October 06, 2022	October 06, 2022
4. Loss Mitigation Expenses	USD 100,000	USD 100,000	October 06, 2022	October 06, 2022

5. Emergency Claims Expenses	USD 100,000	USD 100,000	October 06, 2022	October 06, 2022
6. Network Security Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
7. Privacy Liability				
A. Privacy Liability	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
B. Regulatory Fines & Penalties	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
C. PCI-DSS	USD 5,000,000	USD 100,000	October 06, 2022	October 06, 2022
Insuring Agreements	Limit (each claim or insured event)	Retention / Waiting Period (each claim or insured event)	Retroactive Date	Prior & Pending Date
8. Incident Response Costs	USD 5,000,000	USD 100,000	N/A	N/A
9. Business Interruption				
A. Security Failure Business Interruption	USD 5,000,000	08 Hours	N/A	N/A
B. System Failure Business Interruption	USD 5,000,000	08 Hours	N/A	N/A
C. Technology Service Provider Security Failure Business Interruption	USD 5,000,000	08 Hours	N/A	N/A
D. Technology Service Provider System Failure Business Interruption	USD 5,000,000	08 Hours	N/A	N/A
E. Voluntary Shutdown	USD 5,000,000	08 Hours	N/A	N/A
F. Extra Expense	USD 5,000,000	USD 100,000	N/A	N/A
10. Data Restoration Costs	USD 5,000,000	USD 100,000	N/A	N/A
11. Bricking	USD 5,000,000	USD 100,000	N/A	N/A
12. Cryptojacking	USD 5,000,000	USD 100,000	N/A	N/A
13. Cyber Extortion	USD 5,000,000	USD 100,000	N/A	N/A
14. Digital Crime				
A. Funds Transfer Fraud	USD 250,000	USD 100,000	N/A	N/A
B. Lost Fees Due to Invoice Manipulation	USD 250,000	USD 100,000	N/A	N/A
C. Telecommunications Fraud	USD 250,000	USD 100,000	N/A	N/A
D. Theft of Company Funds	USD 100,000	USD 100,000	N/A	N/A
15. Reputational Harm	USD 5,000,000	2 Weeks	N/A	N/A
16. Criminal Reward	USD 50,000	USD 100,000	N/A	N/A
17. Proof of Loss Costs	USD 250,000	USD 100,000	N/A	N/A

If any Limit field for an Insuring Agreement states "Not Provided", there is no insurance coverage available.

ITEM 4. TOTAL PREMIUM FOR ALL INSURING AGREEMENTS: USD 85,500

The premium payable to **us** does not include any amount with respect to insurance premium tax, excise taxes or service fees. It is **your** obligation to be liable for and pay any insurance premium taxes or excise taxes either directly or through **your** Agent. **We** will be indemnified fully and fully reimbursed by **you** for any premium taxes (and cost associated with the collection, including legal costs) in the event **you** or **your** Agent fail to pay.

ITEM 5. OPTIONAL EXTENDED REPORTING PERIOD

5.1. 1 Year 150% of the annual premium

ITEM 6. NOTICES TO US

6.1 Notice of claims

Attn: Relm Claims Team
claims@relminsurace.com
1-786-742-5416
Relm US Insurance Solutions Inc.
3501 Concord Road, Suite 120
York, PA 17402

For any questions or concerns regarding reporting procedures, contact claims@relminsurace.com

6.2 Cyber incident response 24-hour hotline

Please be aware that contacting the hotline does not satisfy the claim notification requirements of your policy. For claim notification requirements, refer to your policy.

1-888-307-5128 (Toll-Free) or relmcyber@c-wlaw.com

John Loyal - Cipriani & Werner
450 Sentry Pkwy, Suite 200 Blue Bell, PA 19422

Amount that can be paid or incurred without consent, consistent with GENERAL CONDITIONS: USD 75,000

Period of time amounts can be paid or incurred without consent, consistent with GENERAL CONDITIONS: 48 hours

6.3 For all other notices and enquiries

connect@relminsurace.com
3501 Concord Road, Suite 120
York, PA 17402

ITEM 7. SCHEDULE OF FORMS AND ENDORSEMENTS

7.1	NOVAWEB32024-1 DEC TN 3	Declarations
7.2	NOVAWEB32024-0.1	NOVAWEB3: Relm Cyber and Technology Errors & Omissions Insurance Policy
7.3	NOVAWEB32024-0.1-020	Prior Policy Liberalization Endorsement
7.4	NOVAWEB32024-0.1-064	Amend Period of Restoration (Number of Days) Endorsement
7.5	NOVAWEB32024-0.1-066	Amend Protection Period (Number of Days) Endorsement
7.6	NOVAWEB32024-0.1-063	Amend Automatic Extended Reporting Period (Number of Days) Endorsement
7.7	NOVAWEB32024-0.1-062	Amend Condition 14 (Acquisition Threshold Percentage) Endorsement

Please note that the title for each endorsement listed does not describe the scope or intent of such endorsement. Please read each endorsement carefully.

This Policy has been made, entered into, and executed by the undersigned in York, PA, United States.



AUTHORIZED REPRESENTATIVE

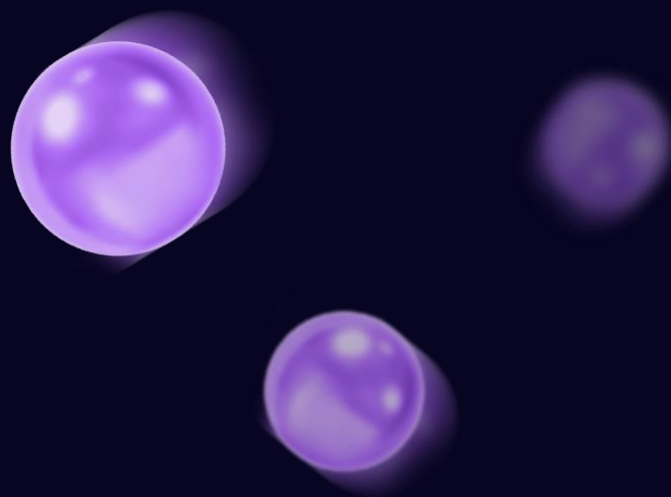
Albert Miller
Vice President
Relm US Insurance Solutions Inc.

NOVAWEB3 CYBER AND TECHNOLOGY ERRORS & OMISSIONS

INSURANCE POLICY

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This Policy, including any attached Declarations and Endorsements, is a contract of insurance between **you** and **us**. **Your** Policy contains all the details of the cover that **we** provide. In consideration of the payment of the premium and in reliance on the statements made by **you** in the **application**, **we** agree to provide the cover as set out below and in the Declarations.

INSURING AGREEMENTS

INSURING AGREEMENT 1: TECHNOLOGY LIABILITY

A. TECHNOLOGY SERVICES LIABILITY

We agree to pay **loss** which **you** are legally obligated to pay because of any **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **technology services wrongful act**.

B. TECHNOLOGY PRODUCTS LIABILITY

We agree to pay **loss** which **you** are legally obligated to pay because of any **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **technology products wrongful act**.

INSURING AGREEMENT 2: MEDIA LIABILITY

A. MEDIA ACTIVITIES LIABILITY

We agree to pay **loss** which **you** are legally obligated to pay because of any **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **media wrongful act** during the performance of **media activities**.

B. MEDIA SERVICES LIABILITY

We agree to pay **loss** which **you** are legally obligated to pay because of any **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **media wrongful act** during the performance of **media services**.

INSURING AGREEMENT 3: PAYMENT OF FEES

A. REFUND OF FEES

We agree to pay amounts that **you** are legally obligated to refund **your client** because of any **claim** first made against **you** during the **policy period** that would be covered under Insuring Agreements 1., or 2. **We** will only pay those amounts which **you** have actually received from **your client** for **your technology services, technology products, or media services**.

B. UNPAID FEES

We agree to pay **your unpaid fees** if **your client** brings or threatens to bring a **claim** against **you** during the **policy period** for an amount greater than **your unpaid fees** and that would be covered under Insuring Agreements 1., or 2.,. However, it is a condition precedent that **you** must obtain written confirmation from **your client** that they will not bring a **claim** against **you** if **you** agree not to pursue them for the **unpaid fees** and provide this confirmation to **us**.

INSURING AGREEMENT 4: LOSS MITIGATION EXPENSES

We agree to reimburse **you** for **loss mitigation expenses** that have been solely incurred to mitigate an actual or potential **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **technology services wrongful act, technology products wrongful act, or media wrongful act**.

However, this Insuring Agreement does not relieve **you** of **your** duty to take reasonable steps to prevent or mitigate a **claim**.

INSURING AGREEMENT 5: EMERGENCY CLAIM EXPENSES

We agree to reimburse **you** for **claim expenses** that have been incurred without **our** consent on an emergency basis to mitigate an actual or potential **claim** first made against **you** during the **policy period** or the **extended reporting period**, if applicable, resulting from a **technology services wrongful act, technology products wrongful act, or media wrongful act**. **Our** consent must be sought no later than thirty (30) days after the **claim expenses** are incurred.

INSURING AGREEMENT 6: NETWORK SECURITY LIABILITY

We agree to reimburse **you** for **loss** which **you** are liable to pay because of any **claim** resulting from a **network security breach** of **computer systems** first discovered by **you** during the **policy period** or the **extended reporting period**, if applicable.

INSURING AGREEMENT 7: PRIVACY LIABILITY

A. PRIVACY LIABILITY

We agree to reimburse **you** for **loss** which **you** are legally obligated to pay because of any **claim** resulting from a **privacy breach** first discovered by **you** during the **policy period** or the **extended reporting period**, if applicable.

B. REGULATORY FINES & PENALTIES

We agree to reimburse **you** for any fines, penalties, or **claim expenses** resulting from a **regulatory investigation**, where legally permissible, arising as a direct result of a **privacy breach** or **network security breach** of **computer systems** first discovered by **you** during the **policy period** or the **extended reporting period**, if applicable.

C. PCI-DSS

We agree to reimburse **you** for any **Payment Card Industry (PCI) fines, penalties, and expenses** which **you** are liable to pay because of any **claim** resulting from a **privacy breach** first discovered by **you** during the **policy period** or the **extended reporting period**, if applicable.

INSURING AGREEMENT 8: INCIDENT RESPONSE COSTS

We agree to reimburse **you** for reasonable and necessary sums incurred to:

1. notify those individuals whose **personal information** was impacted by an actual or suspected **privacy breach**;
2. provide credit monitoring, identity monitoring, or other personal fraud solutions to those individuals whose **personal information** was impacted by an actual or suspected **privacy breach** for a maximum of eighteen (18) months after **you** have notified them;
3. engage an information security expert to determine the existence, cause, and scope of actual or suspected **network security breach** of **computer systems, privacy breach, or extortion threat** and to assist in mitigating it;
4. obtain legal advice to **you** to evaluate **your** obligations pursuant to any **privacy regulation** or a **merchant services agreement**;
5. engage public relations and crisis management support services that are directly related to mitigating harm to **you** after an actual or suspected **network security breach** of **computer systems, privacy breach, or extortion threat**; and
6. engage a cyber extortion expert to negotiate an **extortion ransom**, notify law enforcement or regulators, and mitigate the impact of a suspected or actual **extortion threat**.

INSURING AGREEMENT 9: BUSINESS INTERRUPTION

A. SECURITY FAILURE BUSINESS INTERRUPTION

We agree to reimburse **you** for **your loss of profit** incurred during the **period of restoration** as a direct result of an **interruption** to **your computer system** directly caused by a **network security breach** first discovered by **you** during the **policy period**.

B. SYSTEM FAILURE BUSINESS INTERRUPTION

We agree to reimburse **you** for **your loss of profit** incurred during the **period of restoration** as a direct result of an **interruption** to **your computer system** directly caused by a **system failure** of **your computer system** first discovered by **you** during the **policy period**.

C. TECHNOLOGY SERVICE PROVIDER SECURITY FAILURE BUSINESS INTERRUPTION

We agree to reimburse **you** for **your loss of profit** incurred during the **period of restoration** as a direct result of an **interruption** to a **technology service provider computer system** directly caused by a **technology service provider network security breach** first discovered by **you** during the **policy period**.

D. TECHNOLOGY SERVICE PROVIDER SYSTEM FAILURE BUSINESS INTERRUPTION

We agree to reimburse **you** for **your loss of profit** incurred during the **period of restoration** as a direct result of an **interruption** to a **technology service provider computer system** directly caused by a **system failure** first discovered by **you** during the **policy period**.

E. VOLUNTARY SHUTDOWN

We agree to reimburse **you** for **your loss of profit** incurred during the **period of restoration** as a direct result of an **interruption** to **your computer system** directly caused by the decision made by an **executive officer** or any federal, state, local, or foreign law enforcement or governmental authority to shut down **your computer system** to prevent or mitigate a **network security breach**.

F. EXTRA EXPENSE

We agree to reimburse **you** for **your extra expense** incurred during the **period of restoration** as a direct result of an **interruption** first discovered by **you** during the **policy period**. This Insuring Agreement will only reimburse **you** for **your extra expense** incurred in relation to that part of any **interruption** otherwise covered under Insuring Agreement 9: Business Interruption coverage.

INSURING AGREEMENT 10: DATA RESTORATION COSTS

We agree to reimburse **you** for reasonable and necessary **data restoration costs** **you** incur directly resulting from a **network security breach** first discovered by **you** during the **policy period**.

INSURING AGREEMENT 11: BRICKING

We agree to reimburse **you** for reasonable and necessary costs **you** incur to replace **your devices** with identical or commercially equivalent items if a **network security breach** corrupts **your devices** to a level whereby they are not functional for their intended purposes and if reasonable efforts have been made yet failed to restore **information**.

INSURING AGREEMENT 12: CRYPTOJACKING

We agree to reimburse **you** for **cryptojacking expense** that **you** incur directly because of **cryptojacking** first discovered by **you** during the **policy period**.

INSURING AGREEMENT 13: CYBER EXTORTION

We agree to reimburse **you** for **extortion ransom** in response to an **extortion threat** first discovered by **you** during the **policy period**.

INSURING AGREEMENT 14: DIGITAL CRIME

A. FUNDS TRANSFER FRAUD

We agree to reimburse **you** for **money** that **you** or a financial institution serving as a custodian of **your money** transferred to a **third party** because of a **fraudulent instruction** first discovered by **you** during the **policy period**.

B. LOST FEES DUE TO INVOICE MANIPULATION

We agree to reimburse **you** for **money** that was owed to **you** by a **third party** and that was paid by the **third party** but was never received by **you** due to a **fraudulent instruction** first discovered by **you** during the **policy period**. It is a condition precedent to this coverage that **we** receive correspondence and confirmation from the **third party** detailing their payment of fees and the **fraudulent instruction**.

C. TELECOMMUNICATIONS FRAUD

We agree to reimburse **you** for **telecommunications expense** that **you** incur due to a **network security breach** first discovered during the **policy period**.

D. THEFT OF COMPANY FUNDS

We agree to reimburse **you** for the theft of **money** from **your** main business bank account or main business **hot wallet** directly resulting from a **network security breach** first discovered by **you** during the **policy period**.

INSURING AGREEMENT 15: REPUTATIONAL HARM

We agree to reimburse **you** for **your loss of profits** earned from corporate/commercial **clients** and **extra expenses** incurred during the **protection period** as a direct result of an **adverse media event** first discovered by **you** during the **policy period**.

INSURING AGREEMENT 16: CRIMINAL REWARD

We agree to reimburse **you** for reasonable and necessary amounts that **you** offer to a **third party** for information that leads to the arrest and conviction of any individual(s) committing or trying to commit any illegal act related to any coverage under this Policy. This does not include any information provided by **your** subsidiaries, directors, **executive officers, employees, or third parties** under contract with **you**, including but not limited to auditors and private investigators. All amounts offered pursuant to this Policy expire no later than six (6) months following the end of the **policy period**.

INSURING AGREEMENT 17: PROOF OF LOSS COSTS

We agree to reimburse **you** for reasonable and necessary costs **you** incur to contract with a **third party** to prepare a proof of loss demonstrating **loss of profits** or **extra expenses** to be considered under Insuring Agreement 9: Business Interruption or Insuring Agreement 15: Reputational Harm.

DEFINITIONS

Whether expressed in the singular or plural, present or past, whenever appearing in **bold** in this Policy, the following terms have the meanings set forth below.

additional insured

means a person or entity to which **you** are obligated by virtue of a written contract or agreement to add such person or entity to this Policy as an **additional insured**. Such person or entity, however, is insured only for the vicarious liability of such person or entity because of a **claim** based upon or arising from **your** acts or omissions and subject to the availability of applicable Limits of Insurance of this Policy. However, this paragraph does not apply unless the written contract or agreement has been executed before the occurrence of the **wrongful act** or **insured event** on which the **claim** is based. No such person or entity is insured under this Policy for its liability arising out of its own acts, errors, or omissions. **Additional insured** does not mean any entity which is **your** parent, affiliate, joint venturer or co-venturer, or other entity in which **you** are a partner, including any individual who is an **employee** or **executive officer** thereof.

adverse media event

means the publication by a **third party** of non-public information specifically regarding a **network security breach, privacy breach, or extortion threat**. Multiple **adverse media events** arising from the same series of related, repeated, or continuing **network security breaches, privacy breaches, or extortion threats** shall be considered a single **adverse media event** and deemed to occur at the same time of the first such **adverse media event**.

However, an **adverse media event** does not mean the publication by a **third party** of non-public information regarding a publicly known vulnerability, industry-wide security issue, or competitor security issue.

advertising

means any publicity or promotion of the products or services of others disseminated by **you** or by others on **your** behalf in any medium, including the internet.

application

means each and every application, any statements, any attachments or supplements to such applications, other written materials submitted therewith or incorporated therein, and any other documents, including any warranty letters or similar documents, submitted in connection with the underwriting of this Policy or the underwriting of any other policy issued by **us** or any of **our** affiliates of which this Policy is a renewal or replacement, or which it succeeds in time. All such applications, statements, attachments, and materials are deemed attached to, incorporated into, and made a part of this Policy.

blockchain technology

means a digital ledger that utilizes cryptographic techniques and consensus mechanisms to authenticate and validate transactions before permanently recording them.

blockchain protocol

means a set of rules that allow data to be shared between computers or nodes and thus establish the structure of the **blockchain technology**.

business operations

means the business activities declared to **us** in the **application** and as stated in public filings.

c-suite level executives

means the highest-ranking senior executives in the **company**, such as but not limited to, the Chief Executive Officer, Chief Operating Officer, Chief Financial Officer, Chief Administrative Officer, Chief Information Officer, Chief Compliance Officer, Chief Analytics Officer, Chief Marketing Officer, Chief Data Officer, Chief Risk Officer, Chief Technology Officer, Chief Security Officer, Chief Product Officer, Chief Green Officer, Chief Legal Officer or in-house General Counsel, and Chief Human Resource Officer or their functional equivalents.

claim

means:

1. a written demand received by **you** for money, services, or any non-monetary or injunctive relief;
2. a written demand or request for mediation or arbitration received by **you**;
3. a civil proceeding against **you** commenced by the services of a complaint or similar proceeding;
4. a written demand that **you** toll or waive a statute of limitations;
5. solely with respect to coverage provided under Insuring Agreement 7B: Regulatory Fines & Penalties only, the notification of a **regulatory investigation** against **you**; which is deemed first made upon **your** receipt of notice of the **regulatory investigation**; and
6. solely with respect to coverage provided under Insuring Agreement 7C: PCI-DSS only, the legal obligation to pay **Payment Card Industry (PCI) fines, penalties, and expenses**, which is deemed first made upon **your** receipt of notice of the **Payment Card Industry (PCI) fines, penalties, and expenses**.

Multiple **claims** arising from the same or a series of related, repeated, or continuing acts, errors or omissions, or events will be considered a single **claim** for this Policy. All such **claims** will be deemed to have been made at the time of the first **claim**.

claim expenses

means all reasonable and necessary legal costs and expenses incurred in the investigation, adjustment, negotiation, arbitration, mediation, defense, or appeal of a **claim**, whether paid by **us** on **your** behalf or by **you** with **our** prior written consent. However, **claim expenses** does not mean:

1. any salary, overhead, or other charges incurred by **you** for any time spent in cooperating in the defense and investigation of any **claim** or circumstance which might lead to a **claim** notified under this Policy; or
2. any fees, costs or expenses associated with the adoption and implementation of any security measures, corporate integrity agreement, deferred prosecution agreement, compliance program or similar provision regarding **your business operations**.

client

means any **third party** with whom **you** have agreed, by written contract or formal acceptance of **your** Terms & Conditions, Terms of Service, or Terms of Use, to provide goods or services in exchange for a fee or at no cost if provided in conjunction with other fee-based **technology services**, **technology products** or **media services**.

cold wallet

means an electronic wallet that holds **digital assets** that is never connected to the internet.

company

means the **named insured** or any **subsidiary**.

computer system

means any, computer, hardware, software, application, **decentralized application**, process, code, program, information technology, communication system, networking equipment, back-up facility, data storage system, or electronic device (including but not limited to smart phone, tablet, or wearable device), and all components thereof linked together through a network of devices or network facilities connected via a form of communications technology, including the internet, intranet and virtual private networks (VPN), allowing the networked computing devices to exchange data, that is:

1. operated by and either owned or leased by **you**; or
2. owned by **employees** that are utilized for **business operations** and deployed with **your** Mobile Device Management (MDM) solution; or
3. **technology service provider computer system**, but only with respect to coverage under the following Insuring Agreements:
 - a. Insuring Agreement 6: Network Security Liability
 - b. Insuring Agreement 7: Privacy Liability
 - c. Insuring Agreement 8: Incident Response Costs

contests

means any contests, sweepstakes, **e-sports**, or **tournaments of e-games of chance** or **e-games of skill**. However, **contests** do not mean **e-games of chance** or **e-games of skill** that are not played as part of a **tournament**.

corporate information

means any information owned by a **third party** that is in **your** care, custody, or control and that **you** are legally required to maintain in confidence. However, **corporate information** does not mean publicly available information that is lawfully in the public domain or information available to the general public from government records.

court attendance costs

means reasonable and necessary expenses directly and solely related to **our** request for **you** to attend any court hearing, trial, tribunal, arbitration, adjudication, mediation, or other hearing in connection with the defense of any **claim** under this Policy.

cryptocurrency

means a digital or virtual currency of a **blockchain technology**, including but not limited to native tokens, altcoins, stablecoins, central bank digital currencies, and crypto tokens. **Cryptocurrency** does not include **NFTs or non-fungible tokens**.

cryptocurrency private keys

means a cryptographic series of alphanumeric characters which permit the release of **cryptocurrency** from a **decentralized application**.

cryptojacking

means a **network security breach** that results in the unauthorized use of **your computer system** to mine for **cryptocurrency**.

cryptojacking expense

means the additional expenses incurred by **you** or on **your** behalf for **your** use of, or access to, any of the following utility services or resources:

1. Electricity, natural gas, oil, water, or sewage;
2. Television or internet; or
3. Telecommunication or telephone line

Provided, however, that such **cryptojacking expense** includes only those additional amounts which:

1. are charged to **you** by the provider of the respective utility resource or service:
 - a. in a periodic billing statement due for payment during the **policy period**;
 - b. pursuant to a written contract between **you** and such utility resource or service provider that was executed before the **network security breach** that directly or indirectly resulted in the **cryptojacking**; and
 - c. in excess of any amount(s) which **you** would have incurred had no **cryptojacking** occurred; and
2. are not charged to **you** at a flat fee that does not scale with the rate or use of the respective utility resource or service.

cyber operation

means the use of a **computer system** by or on behalf of a sovereign state to disrupt, deny, degrade, manipulate, or destroy information in a computer system of or in that **sovereign state** or another sovereign state.

cyber terrorism

means the premeditated use of disruptive activities, or threat to use disruptive activities, against computer systems or networks with the intention to cause harm, further social, ideological, religious, political, or similar objectives, or to intimidate any person(s) in the furtherance of such objectives. **Cyber terrorism** does not mean any such activities that are part of, connected to, or related to any **war** or **cyber operation**.

data restoration costs

means reasonable and necessary costs **you** incur to recover, restore, or recreate **information** that is altered, corrupted, destroyed, disrupted, or deleted.

decentralized application

means a type of software application that runs on a distributed, decentralized, **blockchain technology**.

denial of service attack

means a malicious attack by a **third party** designed to slow or completely interrupt the operation of, or access to, the **computer system**.

devices

means desktops and laptop computers, tablets, cell phones, and portable data storage devices that are linked together through **your computer system** and owned by, leased to, or operated by **you**. **Devices** do not mean desktops, laptop computers, tablets, cell phones, and portable data storage devices personally owned by an **employee**.

digital assets

means any **blockchain technology**-based, digitally represented, and intangible information, data, or rights with intrinsic or exchangeable value, including but not limited to **cryptocurrency**, tokens, **NFTs or non-fungible tokens**, digital **securities**. However, **digital assets** do not include **smart contracts**.

double signing event

means the validation or attempt to validate the same block twice on a particular **blockchain protocol**, by a validating entity (**cryptocurrency private key**), which results in any penalties for **you** or **your clients**.

e-games

means **e-games of chance**, **e-games of skill**, and **e-sports**.

e-games of chance

means an electronic game whose outcome is determined by a randomizing device or number generators. An **e-game of chance** may be played as gambling if the players are wagering **digital assets** or **money**.

e-games of skill

means an electronic game whose outcome is determined by mental or physical dexterity.

e-sports

means an electronic competitive game that is played as part of a **tournament**.

employee

means any natural persons who were or are now in **your** service, including any volunteers, interns, part-time, seasonal, leased, and temporary workers, or any individual working on **your** behalf, or at **your** direction, and under **your** direct control. **Employee** does not include **your** stockholders, owners, **executive officers** or directors, or their functional equivalents.

essential service

means a service that is essential for the maintenance of vital functions of a sovereign state including, but not limited to, financial institutions and associated financial market infrastructure, health services or utility services.

executive officers

means with respect to any **company**, the natural persons who were or now are such **company's** board members and **c-suite level executives** of the **company** or their functional equivalents.

expiration date

means the date listed as such in Item 2., of the Declarations.

extended reporting period

means the designated period of time after the cancellation or non-renewal of the **policy period**, in accordance with Condition 10. Extended reporting periods, for reporting:

1. **claims** first made against **you** during such designated period of time, provided that the **claim** is based on **wrongful acts** alleged to have been committed on or after the **retroactive date** and prior to the end of the **policy period**; or
2. **insured events** first discovered on or after the **inception date** and prior to the end of the **policy period**; provided that the **insured event** is alleged to have been taken place on or after the **retroactive date** and prior to the end of the **policy period**.

extortion ransom

means **money** to prevent or terminate an **extortion threat**.

extortion threat

means any credible threat by a **third party** to:

1. commit a **network security breach**; or

2. to alter, destroy, damage, delete, corrupt, or disseminate **protected data** for which **you** are legally responsible, but only if an **extortion ransom** demand is received by **you** or on **your** behalf.

extra expense

means reasonable and necessary expenses incurred by **you**, in excess of **your** normal operating expenses, to promptly resume or conduct **business operations** after the discovery of an **interruption**. **Extra expense** shall not mean:

1. costs to recover, restore, research, or redevelop **information**;
2. costs to replace any **computer system** or to identify or remove software program errors, malware, computer viruses, or vulnerabilities;
3. costs for hardware, whether replacement, repair or otherwise;
4. costs or expenses incurred to prevent a loss or correct any deficiencies or problems with **your computer system** that may cause or contribute to a **claim**;
5. costs or expenses incurred to update, replace, upgrade, or improve any **computer system** to a level beyond that which existed before the applicable **interruption**; or
6. penalties of any nature, however, denominated, arising by contract.

fraudulent instruction

means a verbal, written, or electronic instruction for payment of **money** that is assumed to be legitimate but, in fact, was fraudulent.

hot wallet

means an electronic wallet that holds **digital assets** and is always connected to the internet.

impacted sovereign state

means any sovereign state where a **cyber operation** has had a major detrimental impact on:

1. the functioning of that sovereign state due to disruption to the availability, integrity, or delivery of an **essential service** in that sovereign state; and/or
2. the security or defense of that sovereign state.

inception date

means the date listed as such in Item 2., of the Declarations.

information

means electronic data, including software, and any data pertaining to **cryptocurrency** transactions, stored on **your computer system** or a **technology service provider's computer system** at the time of the **interruption**, provided such data is subject to **your** regular backup procedures as declared on the **application**.

insured event

means **network security breach, privacy breach, extortion threat, system failure, cryptojacking, or fraudulent instruction**.

insured person

means:

1. any past, present, or prospective **executive officer**, in-house lawyers, trustee, general manager, or manager of the **company** (or equivalent position in any jurisdiction), including de facto directors and shadow directors;
2. any **employee**;
3. the estates, heirs, legal representatives, bankruptcy administrator or assigns of an **insured person** described in parts 1., and 2., immediately above in the event of their death, incapacity, insolvency, or bankruptcy but only in respect of any negligent act, error, omission, advice, misstatement or misrepresentation, breach of trust, neglect, or breach of duty, including fiduciary or statutory duty, committed, or alleged to have been committed by an **insured person** while acting in their capacity as an **insured person**; or

4. a parent, spouse, domestic partner, civil partner, or child of an **insured person** described in parts 1., and 2., immediately above, but only in respect of any **claim** brought against them because of:
 - a. their status as a parent, spouse, domestic partner, civil partner, or child of an **insured person**; or
 - b. their ownership or interest in property which the claimant seeks as recovery for a negligent act, error, omission, advice, misstatement or misrepresentation, breach of trust, neglect, or breach of duty, including fiduciary or statutory duty, committed, or alleged to have been committed by an **insured person** while acting in their capacity as an **insured person**.

internet services

means services to obtain, maintain, provide, or use the internet, including, but not limited to:

1. services as an Application Service Provider (ASP), domain name registrar, or Internet Service Provider (ISP);
2. web hosting, web portal services, and search engine services;
3. electronic payment processing and electronic commerce transaction services;
4. electronic exchange and auction services, including **digital asset** exchange services; and
5. designing, developing, and maintaining websites and e-mail services, including **e-game** websites.

interruption

means a measurable and material degradation, disruption, or suspension.

loss

means

1. a monetary judgment, award, or settlement, including any awarded pre-judgment or post-judgment interest rendered against **you**;
2. punitive or exemplary damages, or any damages which are a multiple of compensatory damages incurred by **you**; and
3. **claim expenses**.

However, **loss** does not include the following:

1. any amounts for which **you** are not liable or for which there is no legal recourse against **you**;
2. any credits, refunds, discounts, coupons, prizes, awards, or other incentives offered by **you**. However, this part does not apply to coverage otherwise provided under Insuring Agreement 3.A: Refund of Fees;
3. any fines, penalties, or sanctions. However, this part does not apply to coverage otherwise provided under Insuring Agreement 7.B: Regulatory Fines & Penalties;
4. any **Payment Card Industry (PCI) fines, penalties, and expenses**. However, this part does not apply to coverage otherwise provided under Insuring Agreement 7.C: PCI-DSS;
5. costs to comply with orders granting non-monetary or injunctive relief;
6. disgorgement of unjust enrichment or profits, future profits, or restitution;
7. liquidated damages to the extent that such damages exceed the amount for which **you** would have been legally liable in the absence of such liquidated damages agreement;
8. taxes or loss of tax benefits; or
9. royalties (including return or offset of royalties), future publishing profits, fees (including licensing fees), deposits, commissions or charges or any award, calculation, or determination of damages based on royalties (including return or offset of royalties), future publishing profits, fees (including licensing fees), deposits, commissions, or charges.

loss of profit

means **your** income (either earned in fiat or **cryptocurrency**) that, had the **interruption** or **adverse media event** not occurred, would have been generated directly from **your business operations**, less:

1. sales tax;
2. actual income generated directly from **your business operations** during the **period of restoration** or **protection period**; and
3. any cost savings achieved as a direct result of the **interruption** or **adverse media event**.

The calculation of the **loss of profit** shall be based on an analysis of the revenues and costs generated during each month of the twelve (12) months before the **interruption** or **adverse media event**, as well as the months following the **interruption** or **adverse media event** and will also take into account the reasonable projection of future profitability or otherwise had no **interruption** or **adverse media event** occurred.

loss mitigation expenses

means reasonable and necessary expenses incurred by **you** with **our** prior written consent in respect of measures taken by **you** to rectify any act, error, or omission that resulted in a **claim** or may result in a **claim** for which would be otherwise covered under this Policy had these measures not been taken, provided that:

1. these rectification measures are taken for the sole purpose of mitigating the **claim** or avoiding a **claim**; and,
2. the costs in respect of these rectification measures taken by **you** are less than the expected value of the **claim**.

loss mitigation expenses do not include **employee** salaries, **your loss of profit**, **your** operating expenses, or any goodwill payments or service credits that **you** are not contractually obliged to pay.

malicious code

means any computer virus, Trojan horse, worm, or other code, script, or software program intentionally and maliciously used to access or release within **your computer system**.

management control

means that either directly or indirectly **you**:

1. own more than fifty per cent (50%) of the issued and outstanding voting equity securities; or shares of the company's equity.
2. control voting rights representing the present right to vote for election or to appoint more than fifty per cent (50%) of the directors or trustees or, in the case of a non-corporate entity, the company's management or governing group.

media activities

means the broadcast, creation, display, dissemination, or release of **media content** by **you** or on **your** behalf to the public, including within the Metaverse. **Media activities** do not mean **media services**.

media content

means any information, including words, sounds, numbers, images (including but not limited to **NFTs or non-fungible tokens**), and graphics (including but not limited to **e-games**), regardless of the medium of communication. **Media content** does not include computer software, or the actual goods, products, or services described, displayed, or illustrated within the **media content**. **Media content** does not include any information, including words, sounds, numbers, images, or graphics developed, created, or disseminated by users or members within **your technology products** or **technology services**. **Media content** does not include text, sounds, images, graphics, or other **media content** created using artificial intelligence models, tools, or applications that are not operated by and either owned or leased by **you** and use input training data and generate new data outside of your direct supervision or control.

media services

means the broadcast, creation, display, dissemination, or release of **media content** to the public (including within the Metaverse) performed by **you** or on behalf of **you** for **clients**. **Media services** do not mean **media activities**.

media wrongful act

means one or more of the following acts committed by **you** during **your** performance of **media activities** or **media services**, as applicable, or by any person or entity for whom **you** are legally liable, on or after the **retroactive date** and before the end of the **policy period**:

1. a violation of the rights of privacy of an individual, including false light, intrusion upon seclusion, and public disclosure of private facts;
2. defamation, libel, slander, product disparagement, trade libel, infliction of emotional distress, outrage, outrageous conduct, or other tort related to disparagement or harm to the reputation or character of any person or organization;

3. false arrest, detention, or imprisonment;
4. invasion or interference with an individual's right of publicity, including misappropriation of any name, persona, voice, or likeness for commercial advantage;
5. infringement of copyright;
6. infringement of trade dress, domain name, title or slogan, or the dilution or infringement of trademark or service mark, or improper deep-linking or framing or infringement of domain name including cybersquatting violations;
7. invasion of or interference with any right to private occupancy, including trespass, wrongful entry, or wrongful eviction;
8. plagiarism, piracy, or misappropriation of ideas under implied contract; or
9. unfair competition, including a violation of Section 43(a) of the Lanham Act (or equivalent in any jurisdiction), but only if alleged in conjunction with and arising out of any acts listed in parts 5., or 6., immediately above.

Media wrongful act does not mean **technology products wrongful act** or **technology services wrongful act**.

merchant services agreement

means any agreement between **you** and a credit/debit card processor or company, a financial institution, or an independent service operator that enables **you** to accept credit card, debit card, and prepaid card payments.

money

means currency, **cryptocurrency**, or coins or bank notes in current use and having a face value.

named insured

means the entity listed as such in Item 1., of the Declarations.

network security breach

means:

1. unauthorized access to or unauthorized use of **computer systems**;
2. a **denial of service attack** affecting **computer systems**;
3. the transmission or receipt of **malicious code** via **computer systems**;

NFT or non-fungible token

means cryptographic assets with unique identification codes and metadata which are tokenized via **blockchain technology**.

Payment Card Industry (PCI) fines, penalties, and expenses

means all amounts owned by **you** under the terms of a **merchant services agreement** as a direct result of a suspected or actual **privacy breach**.

period of restoration

means the one hundred and eighty (180) day consecutive period of time that begins when the **interruption** is first discovered.

personal information

means information that allows an individual to be uniquely identified or allows access to an individual's financial accounts or medical records. This includes:

1. social security or social insurance number;
2. medical service or healthcare data;
3. driver's license or government-issued identification number;
4. equivalents of any of the information listed in parts 1., and 3., immediately above;
5. account, credit card, or debit card number, alone or in combination with any information that permits access to an individual's financial information, including, but not limited to, security or access code or password;
6. **cryptocurrency private key**; or
7. other-non-public information to the extent prescribed under **privacy regulations**.

However, **personal information** does not mean publicly available information that is lawfully in the public domain or information available to the general public from government records.

policy period

means the period of time from the **inception date** to the **expiration date** stated in Item 2., of the Declarations or any shorter period resulting from the cancellation of this Policy.

pollutant

means any solid, liquid, gaseous, or thermal irritant or contaminant, including but not limited to:

1. smoke, vapor, soot, fumes, acids, alkalis, chemicals, lead, silica, mold, or asbestos;
2. hazardous, toxic, or radioactive matter or nuclear radiation;
3. waste, which includes material to be recycled, reconditioned, or reclaimed; or
4. any other pollutant as defined by applicable federal, state, or local statutes, regulations, rulings, ordinances, or amendments thereto.

prior and pending date

means the date stated as such on the Declarations. If no date is stated, the **prior and pending date** will be the **inception date** of the earliest insurance policy that **we** have issued to **you** that provides coverage similar to that afforded under this Policy when there has been uninterrupted coverage by **us** for **you** from that earliest policy to this Policy.

privacy breach

means the theft, loss, or unauthorized disclosure of **protected data** in **your** care, custody, or control or a **third party's** care, custody, or control for whom **you** are legally liable.

privacy regulation

means any of the following statutes and related regulations and amendments associated with the care, custody, control, use, access to, the confidentiality of non-public personally identifiable financial, medical, or other sensitive personal information, and any similar law, regulation, or statute whether enacted at the local, state, or federal level or by a foreign jurisdiction:

1. Health Insurance Portability and Accountability Act of 1996 (Public Law 104-191) and the Health Information Technology for Economic and Clinical Health Act of 2009;
2. Gramm-Leach-Bliley Act of 1999;
3. California Consumer Privacy Act of 2018;
4. The General Data Protection Regulation (Regulation (EU) 2016/679) ("GDPR"); and

other state, federal, and foreign identity theft and privacy protection law, regulation, or statute that require commercial entities that collect, process, or store personal information (as defined in such statutes, rules, and regulations, as applicable) to post privacy policies, adopt specific privacy controls, or to notify natural persons and/or organizations if such personal information has been compromised or reasonably suspected of being compromised.

protected data

means **personal information** and **corporate information** that is deemed protected by **privacy regulations**.

However, **protected data** does not mean publicly available information that is lawfully in the public domain or information available to the general public from government records.

protection period

means the one hundred and twenty (120) day consecutive period of time that begins when the **adverse media event** is first discovered.

regulatory investigation

means a civil proceeding, civil investigation, or request for information brought against **you** by or on behalf of any federal, state, local, or foreign governmental entity in their regulatory or official capacity.

retroactive date

means the date stated as such in the Declarations. If no date is stated, the **retroactive date** will be the **inception date** of the earliest insurance policy that **we** have issued to **you** that provides coverage similar to that afforded under this Policy when there has been uninterrupted coverage by **us** for **you** from that earliest policy to this Policy.

securities

means negotiable and non-negotiable instruments or contracts representing either **money** or tangible property.

slashing event

means penalties imposed or seized by a **blockchain protocol** against or otherwise applicable to **you** or **your client** due to a violation of the respective rules of the **blockchain protocol** with respect to **your** services as a **blockchain technology** infrastructure provider, including but not limited to a **double signing event**.

smart contract

means a programmable set of instructions in the form of computer code designed to autonomously execute specific actions using **blockchain technology** when predetermined conditions are met.

subsidiary

means any entity of which the **company** has **management control** on or before the **inception date** of this Policy.

system failure

means any unplanned or unintentional outage.

technology products wrongful act

means one or more of the following acts committed by **you** during **your** delivery of **technology products**, or by any person or entity for whom **you** are legally liable, on or after the **retroactive date** and before the end of the **policy period**:

1. any negligent act, error, omission, misstatement, misleading statement, misrepresentation, or unintentional breach of a contractual obligation by **you** that results in the failure of **technology products** to perform the function or serve the purpose intended; or
2. software copyright infringement by **you** with respect to **technology products**;

Technology products wrongful act does not mean a **media wrongful act** or **technology services wrongful act**.

technology products

means any computer hardware, firmware, software, **decentralized application**, **smart contract**, **blockchain technology**, **e-games** or related electronic product, equipment, software or service update, or devices specifically designed or intended for use in connection with any **technology services**, that are created, manufactured, developed, distributed, licensed, leased or sold by **you** to **clients**.

technology service provider

means any **third party** that provides **you** with hosted technology application services or processes, maintains, or stores electronic data on **your** behalf, pursuant to a written contract.

technology service provider computer system

means computer hardware, software, and all components thereof linked together through a network of devices accessible through the internet or the intranet or connected with data storage or other peripheral devices that are owned and operated by a **technology service provider** for **your business operations**. **Technology service provider computer system** does not include **decentralized applications**, **blockchain technologies**, **blockchain protocols** or **smart contracts**.

technology service provider network security breach

means any of the following:

1. unauthorized access to or unauthorized use of **technology service provider computer systems**;
2. a **denial of service attack** affecting **technology service provider computer systems**; or

3. the transmission or receipt of **malicious code** via **technology service provider computer systems**.

technology services

means:

1. analysis, design, integration, and conversion of computer systems, computer networks, electronic systems, and **blockchain technology**;
2. designing, developing, programming, servicing, distributing, licensing, installing, maintaining, and repairing computer software, computer code, and computer firmware or hardware, including but not limited to **smart contracts, decentralized applications, or e-games**;
3. education and training in the use of computer hardware or software; however, this does not include e-coaching with regard to **e-games**;
4. technology consulting;
5. cloud computing services, including blockchain as a service (BaaS), software as a service (SaaS), platform as a service (PaaS), network as a service (NaaS), and infrastructure as a service (IaaS);
6. data processing in connection with any of the above-listed services, including but not limited to storing, collecting, compiling, processing, mining, conversion, encryption, recording, or analysis of data, **digital assets**, or **cryptocurrency** transactions;
7. computer and network security services, including but not limited to providing content filtering, patch administration, and security audits; or
8. **internet services**

performed by **you** for **clients**.

technology services wrongful act

means one or more of the following acts committed by **you** during **your** performance of **technology services**, or by any person or entity for whom **you** are legally liable, on or after the **retroactive date** and before the end of the **policy period**:

1. any negligent act, error, omission, misstatement, misleading statement, misrepresentation, or unintentional breach of a contractual obligation by **you** or by any person or entity for whom **you** are legally liable in rendering or failing to render **technology services**;
2. infringement of an intellectual property right by **you** with respect to **technology services**;

Technology services wrongful act does not mean a **media wrongful act** or **technology products wrongful act**.

telecommunications expense

means the additional expenses incurred by **you** or on **your** behalf for **your** use of, or access to, a telecommunications network or telephone line.

Provided, however, that such **telecommunications expense** includes only those additional amounts which:

1. are charged to **you** by a telecommunications provider:
 - a. in a periodic billing statement due for payment during the **policy period**;
 - b. pursuant to a written contract between **you** and such telecommunications provider that was executed before the **network security breach** that directly or indirectly resulted in the **telecommunications expense**;
 - c. in excess of any amount(s) which **you** would have incurred had no **network security breach** occurred; and,
2. are not charged to **you** at a flat fee that does not scale with the rate or use of the respective utility resource or service.

third party

means:

1. any person who is not a current or former **employee**, director, **executive officer**, partner, volunteer, or independent contractor of **yours**, except any such **employee** acting outside the scope of their authority as such; or
2. any entity **you** do not directly or indirectly control, operate, or manage.

tournament

means **e-games** which are organized, sanctioned, or otherwise promoted by the game's owner or publisher, including but not limited to those which are played in front of a live audience or streamed over the internet.

unpaid fees

means any fees contractually due to **you**, but **your client** refuses to pay **you**. **Unpaid fees** do not include any part representing **your** profit, mark-up, or tax liability.

waiting period

means the number of hours stated in the Declarations that must elapse after an **interruption or adverse media event** is discovered before **we** become obligated to pay covered **loss of profits** and **extra expense** in connection with such **interruption or adverse media event**. The **waiting period** commences immediately after the specific date and time that the **interruption or adverse media event** is discovered. No monetary retention shall apply to those Insuring Agreements when a **waiting period** is stated in the Declarations.

war

(whether declared or not) means armed conflict involving physical force:

1. by a sovereign state against another sovereign state, or
2. as part of a civil war, invasion, riot, civil commotion, rebellion, revolution, insurrection, military action, or usurpation of power,

we, our, us

means Relm Insurance US Solutions Inc or Relm US Insurance Agency, as applicable, on behalf of Trisura Specialty Insurance Company.

wrongful act

means **technology services wrongful act**, **technology products wrongful act**, and **media wrongful act**, as applicable.

you/your

means:

1. the **company**;
2. an **insured person**;
3. an **additional insured** but only with respect to **claims** against such person or entity for acts, errors, or omissions for which **you** are legally liable;

EXCLUSIONS

We will not make any payment under this Policy for any amounts directly or indirectly resulting from, arising out of, attributable to, or in any way related to:

Advertising

1. any actual or alleged false advertising or misleading advertising by **you** or by others on **your** behalf; and
2. any publicity or promotion of the products or services of others disseminated by **you** or by others on **your** behalf in any medium, including the internet. However, this part of this Exclusion only applies to Insuring Agreements 1., 2., 3., 4., and 5.

Contests and over-redemption

1. any **contests**;
2. the value of coupons, price discounts, prizes, awards, or any other valuable consideration given in excess of the total contracted or expected amount; and
3. the value of **e-gaming** credits, cheat codes, avatars, unlocked functionalities, and prizes.

Bodily injury

any physical injury, sickness, disease, or death of any person, including any mental anguish or emotional distress resulting from such physical injury, sickness, disease, or death.

Contractual liability

any contractual obligation, with respect to Insuring Agreements 1., 2., 3., 4., 5., only. However further, this Exclusion does not apply to:

1. **your** obligation to perform **technology services**;
2. a **claim** for misappropriation of ideas under implied contract; or
3. to the extent **you** would have been liable in the absence of such a contract.

Cold wallet storage

cold wallets. However, this Exclusion only applies to Insuring Agreement 14: Digital Crime.

Description of products or services

inaccurate, inadequate, or incomplete description of the price of goods, products, or services, or the failure of goods, products, or services to conform with any represented quality or performance contained in material that promotes the product, service, or business of others. However, this Exclusion only applies to Insuring Agreements 1., 2., 3., 4., and 5.

Disputed payments

disputes between **you** and the **third party** with respect to goods provided or services performed, either by **you** or the **third party**. However, this Exclusion only applies to Insuring Agreement 14: Digital Crime.

Double signing event

any penalties, fines, fees, or any liability resulting from a **double signing event**.

Employees

a fraudulent, dishonest, or criminal act by **your employee**. However, this Exclusion only applies to Insuring Agreement 14: Digital Crime.

Employment liability

1. any employer-employee relations, policies, practices, acts or omissions, or actual or alleged refusal to employ any person, or misconduct with respect to **employees**; or
2. any actual or alleged acts related to **your company** pension, healthcare, welfare, profit sharing, mutual or investments plans, funds, or trusts; or any violation of any provisions of the Employee Retirement Income Security Act of 1974 or any amendment of or addition to such laws or any violation of any order, rulings or regulation issued pursuant thereto or any other similar law, regulation, or statute whether enacted at the local, state or federal level or by a foreign jurisdiction.

However, this Exclusion does not apply to Insuring Agreement 8: Incident Response Costs for a **privacy breach** of **employees' protected data** provided no **executive officer** participated or colluded in such **privacy breach**.

Fraudulent or intentional misconduct

any act, error, omission, incident, or event that is dishonest, deceptive, fraudulent, criminal, or malicious intentionally committed by **you** or that **you** colluded with or participated in. However, this Exclusion does not apply to:

1. **claim expenses** incurred in defending any **claim** alleging fraudulent or intentional misconduct until such conduct is evidenced by any non-appealable final adjudication, alternate dispute resolution ruling, or by an admission by **you**; or
2. any **employee** or **executive officer** who did not personally commit, participate in, or know about such fraudulent or intentional misconduct.

For this Exclusion, only acts, errors, omissions, or knowledge of **executive officers** will be imputed to **you**.

Governmental actions

1. a **claim** brought by or on behalf of any federal, state, foreign, or local governmental entity in such entity's regulatory or official capacity. However, this part of this Exclusion does not apply in respect of Insuring Agreement 7B: Regulatory Fines & Penalties; or
2. seizure, confiscation, nationalization, or destruction of or damage to, or loss of use of **information, digital assets**, or the **computer system** or the shutdown of all or part of the **computer system** or **business operations** by order of any governmental or public authority. However, this part of this Exclusion only applies to Insuring Agreement 9: Business Interruption with the exception of 9E: Voluntary Shutdown.

Harassment, abuse, and discrimination

1. any actual or alleged conduct, physical act, gesture, spoken or written words of a sexual or violent nature, including sexual molestation, sexual or physical assault or battery, sexual or physical abuse, or sexual harassment; or
2. any misconduct or discrimination because of or relating to: race, creed, color, age, sex, sexual preference, national origin, religion, handicap, disability, or marital status.

Infrastructure

1. any electrical or mechanical failure and/or interruption of infrastructure, including any electrical power interruption, outage, surge, spike, brownout, or blackout; or
2. any failure, suspension, or sabotage of telephone lines, gas, water, cable, data transmission lines, satellites, or other telecommunications or networking or internet infrastructure, including a **denial of service attack** or similar event targeting such telecommunications or networking infrastructure, resulting in a local, regional, countrywide, or international outage of telecommunications and/or the internet.

However, this Exclusion does not apply to infrastructure under **your** operational control.

Insolvency and bankruptcy

your insolvency, liquidation, or bankruptcy, or any **third party's** insolvency, liquidation, or bankruptcy. However, **your** insolvency will not relieve **us** of any of **our** legal obligations under this Policy where the insolvency, liquidation, or bankruptcy does not give rise to a **claim** under this Policy.

Insured versus insured

1. any **claim** made by **you** or on **your** behalf; or
2. any **claim** made by, on behalf of:
 - a. any entity which is a parent, affiliate, joint venturer, or co-venturer of **yours**, or other entity in which **you** are a partner, including any individual who is an **employee, executive officer**, or director thereof; or
 - b. any entity directly or indirectly controlled, operated, or managed by an entity described immediately above, including any individual who is an **employee, executive officer**, or director thereof.

However, this Exclusion does not apply to:

1. any **claim** against an **insured person** pursued by any past **insured person**; or
2. any **claim** against an **insured person** pursued by an insolvency administrator, receiver, liquidator, creditor committee, or similar official of an organization or outside entity.

Intellectual property

1. license fees, royalty payments, or any **claim** brought against **you** by or on behalf of any intellectual property licensing bodies or organizations;
2. any **claim** brought by a subcontractor, joint venturer, or venture partner regarding a dispute over ownership of rights in **media content** or services provided by such subcontractor, joint venturer, or venture partner;
3. **your** use of illegal or unlicensed programs or source material that violate the provisions or laws referring to software protection;
4. actual or alleged infringement, misuse, theft, misappropriation, or abuse of patents, patent rights, or trade secrets;

5. actual or alleged disclosure, misuse, or misappropriation of any ideas, trade secrets, or confidential information that came into the possession of any person before the date they became an **employee** or into the possession of any **subsidiary** before **you** acquired it.
6. any **claim** brought against **you** for an actual or alleged infringement, contributory infringement, or misappropriation directly resulting from the use of artificial intelligence models, tools, or applications that are not operated by and either owned or leased by **you** and use input training data and generate new data outside of **your** direct supervision or control.

Loss of funds

1. loss, transfer, or theft of **digital assets, money** or **securities**, or any equivalents thereof. However, this part of this Exclusion does not apply to Insuring Agreement 14: Digital Crime.
2. trading losses or liabilities (including commissions or fees) resulting from the price fluctuation of stocks, shares, **digital assets, money** or **securities** on any financial markets or exchanges.

Notwithstanding the foregoing, and for the avoidance of doubt, coverage pursuant to Insuring Agreements 1.-17., remains intact, but the loss of **digital assets, money** or **securities** itself is not covered per this Exclusion.

Pollution

the discharge, dispersal, release, migration, seepage, or escape of **pollutants** and associated clean-up costs.

Prior and pending litigation

any written demand, litigation, arbitration, administrative or other proceeding which was alleged or brought against **you** prior to the **prior and pending date** as set forth in the Declarations, or any **wrongful act, insured event**, fact, or circumstance underlying or alleged therein.

Prior known acts or prior noticed claims

1. any act, error, omission, incident, or event discovered before the **inception date** of this Policy if any **executive officer** on or before the **inception date** knew or could have reasonably foreseen that such act, error or omission, incident, or event might be expected to be the basis of a **claim** or **loss**; or
2. any **claim, loss**, incident, or circumstance for which notice has been provided under any prior policy of which this Policy is a renewal or replacement.

Product recall

any costs or expenses incurred or to be incurred by **you** or others on **your** behalf for the reprinting, reposting, recall, inspection, repair, replacement, removal, or disposal of any **technology products, media content**, or work product, including when resulting from or incorporating the results of **technology services** or **media services**. However, this Exclusion does not apply to the resulting loss of use of such **technology products, media content**, or work products resulting from or incorporating the results of **technology services**.

Property damage

physical injury to tangible property, including the loss thereof, but **information, digital assets, money**, and **securities** will not be considered tangible property. However, this Exclusion does not apply to coverage otherwise provided under Insuring Agreement 11: Bricking.

Retroactive date

any related or continuing act, error, omission, misstatement, misleading statement, misrepresentation, unintentional breach of a contractual obligation, incident, or event where the first such act, error, omission, misstatement, misleading statement, misrepresentation, or unintentional breach of a contractual obligation, incident or event was first alleged or discovered before the **retroactive date**.

Sanctions

the violation of any economic or trade sanctions by the United Nations, European Union, United Kingdom or the United States government, or any other government including, but not limited to, sanctions administered and enforced by the United States Treasury Department's Office of Foreign Assets Control ("OFAC") or any similar law, regulation or statute whether enacted at the local, state, or federal level or by a foreign jurisdiction.

Securities law violations

any actual, alleged, or attempted violation of any foreign, federal, state, local law, statute, rule, or regulation relating to:

1. securities, stocks or equities, including but not limited to the Securities Act of 1933, the Securities Exchange Act of 1934, the Investment Advisers Act of 1940, any United States' state blue sky or securities law, or the Sarbanes-Oxley Act of 2002;
2. purchase or sale, or offer or solicitation of an offer to purchase or sell, any **digital assets**.

Except that this Exclusion does not apply with respect to that part of a covered **claim** resulting from a **privacy breach**.

Slashing event

any contractual fines, fees, penalties, or missed rewards imposed by a **blockchain protocol** as a result of a **slashing event**.

Specified professional services

any act, error, or omission in the performance of legal, accounting, investment, financial planning, architectural, surveying, health care services, actuarial, licensed insurance, real estate agent or broker, or civil or structural engineering.

Unlawful or improper use of information

any actual or alleged unlawful, improper, or unauthorized:

1. collection, acquisition, use, or destruction of **personal information**; or
2. use of **personal information** to send unsolicited communications, faxes, or emails, or any failure to comply with legal requirements or obligations relating to a person's consent to the acquisition, collection, destruction, or use of **personal information**.

User bans

any actual or alleged **claims** based upon or arising out of any bans and exclusions of, or failures to ban or exclude, users from **technology products** or **media content**, including but not limited to **e-games**. However, this Exclusion does not apply when the actual or alleged **claim** arises solely from a **technology products wrongful act**.

Violation of statute

any amounts based upon or arising out of any actual or alleged violation of any federal, state, or local statute, ordinance, or regulation, including but not limited to:

1. unfair competition, restraint of trade, or any other violation of antitrust laws, including, but not limited to, the Sherman Act, the Clayton Act, the Robinson-Patman Act;
2. the Telephone Consumer Protection Act, the Can-Spam Act of 2003, the Fair Credit Reporting Act (United States), the Fair Debt Collection Act, Genetic Information Privacy Act ("GIPA"), and the Biometric Information Privacy Act ("BIPA"); and
3. deceptive trade practices or restraint of trade;

all as amended and any rules or regulations promulgated pursuant thereto, as well as any other similar, state, local, or foreign law.

However, this Exclusion does not apply to any **privacy regulation**.

War and cyber operation

any amounts based upon, arising out of, or in any way related to a:

1. **war**;
2. **cyber operation** that is carried out as part of a **war**; and/or
3. **cyber operation** that causes a sovereign state to become an **impacted sovereign state**.

However, this Exclusion does not apply to **cyber terrorism**.

HOW MUCH WE WILL PAY: LIMITS OF INSURANCE

The maximum amount **we** will pay under this Policy will not exceed the Aggregate Policy Limit for All Insuring Agreements detailed in Item 3., of the Declarations.

Subject to the Aggregate Policy Limit as above, the maximum amount **we** will pay for each **claim** or **insured event** under each Insuring Agreement shall not exceed the respective Limit (each **claim** or **insured event**) shown in Item 3., of the Declarations for each Insuring Agreement.

Any Sublimits of Insurance provided throughout this Policy, shall be part of, and not in addition to, the respective Limits of Insurance for each Insuring Agreement stated in Item 3 of the Declarations.

Where one or more **claim** or **insured event** arises from the same common nexus of facts, circumstance, situation, event, transaction, cause, or series of causally or logically connected facts, circumstances, situations, events, transactions, or causes, they shall be deemed to be one **claim** or **insured event**, and only one Limit of Insurance shall be payable in respect of all such **claims** or **insured events**.

If more than one Insuring Agreement applies to the same **claim** or **insured event**, any amounts paid under each Insuring Agreement will not exceed the amount stated for such Insuring Agreement in the Declarations. **We** have the sole discretion to allocate amounts to each Insuring Agreement.

In respect of Insuring Agreement 9: Business Interruption, a single **period of restoration** will apply to each **interruption** first discovered by **you** during the **policy period**.

In respect of Insuring Agreement 15: Reputational Harm, a single **protection period** will apply to each **adverse media event**.

All payments made by **us** under this Policy will reduce this Policy's Aggregate Policy Limit for All Insuring Agreements shown in Item 3., of the Declarations.

YOUR RETENTION

The **named insured** is responsible for payment of the applicable Retention detailed in the Declarations. All Retentions must be borne by the **named insured**, uninsured, and at **your** own risk.

We will only be liable for that part of each and every **claim** or **insured event** that exceeds the amount of the retention. If any expenditure is incurred by **us** which falls within the Retention, then the **named insured** will reimburse **us** for that amount upon **our** request. The limits of insurance will not be reduced by the payment of any Retention.

Where cover is provided under multiple Insuring Agreements, for the same **claim** or **insured event**, only one Retention will apply, and this will be the highest single Retention of the Insuring Agreements under which cover is provided.

In respect of Insuring Agreement 9: Business Interruption, a single **waiting period** will apply to each **interruption** first discovered by **you** during the **policy period**.

In respect of Insuring Agreement 15: Reputational Harm, a single **waiting period** will apply to each **adverse media event** first discovered by **you** during the **policy period**.

No monetary Retention applies for those Insuring Agreements whereby a **waiting period** is stated in the Declarations.

CONDITIONS

1. If an incident takes place

In the event that **you** reasonably suspect or have reason to believe that an actual **network security breach** is occurring or may occur on **your computer system** or a **technology service provider computer system**, **you**

may utilize the 24-Hour Response Hotline for the pre-approved breach counsel that is included in Item 6.2., of the Declarations.

If this is done, **you** may incur or pay reasonable and necessary Incident Response Costs without consent for the period and up to the amount listed in Item 6.2., of the Declarations, but only if **you** utilize the pre-approved breach counsel as provided in Item 6.2., of the Declarations and pre-approved vendors that the breach counsel recommends.

The reasonable and necessary expenses incurred will be applied against the Policy's Retention and Limits of Insurance. Use of the 24-Hour Response Hotline does not fulfil the notice requirements of the Policy detailed in Conditions 2., and 3., below.

2. Reporting claims and insured events to us

1. It is a condition precedent to coverage under this policy that **you** must notify **us** in writing as soon as practicable after an **executive officer** becomes aware of any **claim** or **insured event** but in no event later than the end of the **policy period**. Covered amounts paid or incurred by **you** or on **your** behalf will only be paid or reimbursed by **us** if **we** provide **our** prior written consent.

However, if **you** are prevented from notifying **us** by a legal or regulatory prohibition after using **your** best efforts to obtain permission to release information, then **your** rights under this Policy will not be affected. However, **you** must advise **us** during the **policy period** that such prohibition exists, and immediately upon cessation of such prohibition, **you** must provide full details of the required notice.

2. A **claim** will be deemed to be first made on the earlier of:
 - a. the date on which an **executive officer** receives notice of a demand, request for information, an investigation, or a request to enter into a tolling agreement; or
 - b. the date of service upon or receipt by an **executive officer** of a complaint in any proceeding, if such **claim** is a civil proceeding, arbitration, or any alternative dispute resolution proceeding.
3. An **insured event** will be deemed to occur when such **event** first becomes known to an **executive officer**.
4. Where one or more **claim** or **insured event** arises from the same common nexus of facts, circumstance, situation, event, transaction, cause, or series of causally or logically connected facts, circumstances, situations, events, transactions, or causes, they shall be deemed to be first made on the date at which an **executive officer** first received notice.

3. Reporting circumstances to us

If, during the **policy period**, **you** provide **us** with written notice of an act, error, omission, fact, event, or circumstance that is discovered during the **policy period** and is reasonably likely to give rise to a **claim** or **insured event**, with full details of:

1. such an act, error, omission, fact, or circumstance, including any available information on persons or entities involved in such act, error, omission, fact, event, or circumstance;
2. the nature and extent of the potential damages and the names of the potential claimants; and
3. the manner in which **you** first became aware of such an act, error, omission, fact, event, or circumstance.

then any such **claim** or **insured event** subsequently arising out of such act, error, omission, fact, or circumstance will be deemed to have been made during the **policy period** in which notice was given. In order for coverage to apply to any such **claim** or **insured event**, it must be notified to **us** in accordance with Condition 2.

4. Our consent

Covered amounts paid or incurred by **you** or on **your** behalf will only be paid or reimbursed by **us** if **we** provide **our** prior written consent.

However, as detailed in Condition 1., if **you** utilize the 24-Hour Response Hotline, **you** may incur or pay reasonable and necessary Incident Response Costs as provided in Item 6.2., of the Declarations, without consent for the period listed in the Declarations and up to the amount listed in the Declarations.

5. Our duty to defend you

We have the right and duty to defend a covered **claim**, even if the allegations are groundless, false, or fraudulent.

Defense counsel will be mutually agreed upon by **you** and **us**, but our decision will be final in the absence of such agreement. **We** have the right to investigate and settle a covered **claim** as is deemed necessary by **us**. However, **we** will not settle a **claim** without **your** consent, but such consent is not to be unreasonably withheld. If **we** recommend a settlement of a **claim** which is acceptable to the claimant, and **you** refuse to consent to such settlement, then **our** obligation to pay **loss** and **claim expenses** on account of such **claim** will not exceed the sum of the amount for which **we** could have settled such **claim** plus **claim expenses** incurred before the date of such settlement offer, plus seventy percent (70%) of **loss** and **claim expenses** combined that are incurred after the date of **your** refusal to consent to such settlement. However, in no event will **our** liability exceed the applicable limit of insurance.

Our right and duty to defend or pay ends when the applicable limit of insurance has been exhausted.

6. Your duties of loss mitigation, assistance, and cooperation

1. **You** will take all reasonable steps to avoid or mitigate and/or prevent any circumstance, **claim**, or **insured event** covered under this Policy. Once an **insured event** has been discovered or a **claim** has been made, **you** must take all reasonable steps to prevent further loss that might be covered under this Policy.
2. **You** will cooperate with us in the handling of any **claim** or **insured event** and, upon **our request**:
 - a. provide **us** with copies of demands, reports, investigations, pleadings, IT forensic information, including copies of **your computer system**, forensic reports, and event logs, and all related papers and other information, assistance, and cooperation as **we** reasonably request;
 - b. attend hearings, depositions, conferences, and trials, assist in effecting settlements, assist in securing and giving evidence, execute all papers, obtain the attendance of witnesses; and assist in any other aspect of the investigation and defense. If **we** request or give written consent for **you** to attend a trial, hearing, deposition, mediation, arbitration, or any other proceeding, **we** will pay **your court attendance costs** up to five hundred dollars (USD 500) a day per person up to a maximum of ten thousand dollars (USD 10,000) per **policy period**. These amounts will be part of and not in addition to the Aggregate Limit of Insurance; and
 - c. submit for an examination under oath by **our** representative, if requested, in connection with all matters relating to this Policy.

Failure to cooperate with **us** in the defense of a **claim** or the investigation of an **insured event** is a breach of this Policy and will result in loss of coverage.

3. **You** will not, except at **your** own cost, voluntarily make a payment, admit liability, assume any obligation, or incur any expense without **our** prior written consent unless otherwise specifically permitted. However, the prompt public admission of a **network security breach** potentially impacting **protected information**, as required by **privacy regulation** will not be considered as an admission of liability requiring **our** prior consent; however, **we** are to be informed as soon as practicable of such public admission if such public admission is a circumstance that could lead to a **claim**.
4. **Your** disclosure of the existence of Insuring Agreement 13: Cyber Extortion to the public constitutes a failure of a condition precedent to coverage and will operate to defeat coverage under this Policy for all sums incurred directly as a result of an **extortion threat**.

7. Our rights of subrogation and recovery

To the extent of any payment under this policy, **we** will be subrogated to all of **your** rights of recovery, and **you** will do whatever is reasonably necessary to secure and preserve such rights, directly or in **your** name. **You** will not do anything to prejudice or impair such rights.

Any recoveries will be first applied to subrogation expenses, second to any amounts paid or reimbursed by **us** under this Policy, and lastly to the **retention**. Any additional amounts will be paid to **you**.

8. How this policy operates with other insurances

If there is any other valid and collectible insurance available to **you** that applies to any coverage under this Policy, this Policy is excess of, and will not contribute with, such other insurance, whether primary, excess, or contingent insurance or on any other basis, except when the other insurance is specifically designed to apply in excess of this Policy and no other insurance applies.

However, regarding Insuring Agreement 8: Incident Response Costs only, this Policy is primary to any other valid and collectible insurance available to **you**.

9. Representations made by you

By acceptance of this Policy, **you** agree that this Policy embodies all agreements between **you** and **us** relating to this insurance.

We have relied on the representations made within the **application**. **Your** representations shall be deemed material to the risk assumed by **us**, and this Policy is issued in reliance upon the truth thereof. The **application** and any supplemental materials submitted to **us** are deemed incorporated into and made a part of this Policy.

Notice to **your** Agent or knowledge possessed by any such Agent shall not affect a waiver or a change in any part of this Policy or stop **us** from asserting any right under the terms of this Policy, nor shall the terms of this Policy be waived or changed, except by endorsement issued to form a part of this Policy and signed by **us**.

If the **application** contains any misrepresentation or any inaccurate or incomplete information or statement, and such misrepresentation or inaccurate or incomplete information or statement either was made with the intent to deceive or materially affected either the acceptance of the risk or the hazard assumed by **us** under this Policy, then no coverage will be provided under this Policy for any **claims** or **insured events** based upon or arising out of the facts that were the subject of such misrepresentation or inaccurate or incomplete information or statement concerning any **executive officer** who knew, as of the date the **application** was signed or submitted, of the facts that were the subject of the misrepresentation or inaccurate or incomplete information or statement, whether or not any **executive officer** knew the **application** contained the misrepresentation or inaccurate or incomplete information or statement.

For purposes of applying this condition, the knowledge of an **executive officer** will not be imputed to any other **executive officer**.

10. Extended reporting periods

1. Automatic **extended reporting period**

An **extended reporting period** of forty-five (45) days following the end of the **policy period** will be automatically granted at no additional premium. The Aggregate Policy Limit of Insurance during the automatic **extended reporting period** is part of and not in addition to the Aggregate Policy Limit of Insurance detailed in Item 3., of the Declarations.

No automatic **extended reporting period** is granted if the Policy has been cancelled for non-payment of premium or if **you** elect an Optional **extended reporting period** detailed in Condition 10.2.

2. Optional **extended reporting period**

If this Policy is cancelled or non-renewed (except for non-payment of premium or **you** failed to comply with the Conditions of the Policy), the **company** can elect to purchase an optional **extended reporting period**.

The optional **extended reporting periods** and their respective percentages of the annual premium the **company** must pay to purchase an optional **extended reporting period** are set forth in Item 5.1., of the Declarations.

We must receive the **company's** request for the optional **extended reporting period** by written notice, together with the applicable premium, within forty-five (45) days after the end of the **policy period**. Premium for the optional **extended reporting period** will be fully earned on the effective date thereof. Once in effect, the optional **extended reporting period** may not be cancelled.

Any **claim** or **insured event** reported in writing to **us** during the optional **extended reporting period** will be deemed to have been made on the last day of this **policy period**. All **claims** and **insured events** should be reported to **us** in accordance with the Conditions of this Policy.

The Aggregate Policy Limit of Insurance during the optional **extended reporting period** is part of and not in addition to the Aggregate Policy Limit of Insurance set forth in Item 3., of the Declarations.

No automatic or optional **extended reporting period** will be construed to be a new policy, and any claim submitted during an **extended reporting period** will be subject to the Policy's terms and conditions, except as specifically set forth above.

No automatic **extended reporting period** or **optional extended reporting period** is available if **you** obtain another insurance policy that applies to such **claim** or **insured event** within forty-five (45) days immediately following the end of the **policy period**.

11. Cancellation of this Policy

1. The **named insured** may cancel this Policy by mailing or delivering written notice of cancellation to **us** at the address stated in Item 6.3., of the Declarations. Such notice of cancellation will state the effective date of cancellation, or if no effective date is stated, the effective date of cancellation will be thirty (30) days after **we** receive the notice. The **policy period** will end on that date.

If the **named insured** cancels, the refund, if any, will be the pro rata unearned amount of the annual premium. Return of premium to the **named insured** is not a condition precedent to cancellation. If a **claim, insured event**, or circumstance has been notified to this Policy before cancellation, the premium will be deemed fully earned by **us**.

2. **We** may cancel this policy for non-payment of premium by mailing or delivering written notice of cancellation to the **named insured** at least ten (10) days before the effective date of cancellation. **We** will mail or deliver the notice to the **named insured** at the address stated in Item 6.3., of the Declarations. If notice of cancellation is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

12. Nonrenewal of this Policy

We may elect not to renew this Policy by mailing or delivering written notice of nonrenewal to the **named insured** at the address stated on the Declarations at least thirty (30) days before the Policy **expiration date**. If notice of nonrenewal is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

13. When the company is acquired or wound up

If during the **policy period**:

1. the **company** consolidates, merges with, or is acquired by another entity; or
2. the **company** makes a public offering of its **securities**; or
3. the **company** is wound up;

then cover under this Policy will continue to apply but only in respect of any actual or alleged **wrongful acts** committed before the effective date of the event in parts 1., 2., or 3., immediately above.

14. If the company acquires an entity during the policy period

If the **company** acquires an entity during the **policy period** whose annual revenue does not exceed 25% of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary**.

However, if any such newly acquired or created entity's gross revenues exceed 25% of the **company's** combined annual gross revenues at the **inception date** of this Policy, coverage will only be provided if the **company** provides written notice to **us** of the creation or acquisition with any necessary underwriting information and pay any additional premium as **we** may require. This must all be done within ninety (90) days of such creation or acquisition.

Coverage will only be provided if **we**, in our sole discretion, agree to provide coverage and evidence it within an endorsement to this Policy. If no agreement is reached between the **company** and **us**, the newly created or acquired entity and its subsidiaries will not be considered insured under this Policy or have been insured at any time.

There is no coverage under this policy for any **claim** that occurred or **insured event** discovered in fact, in whole, or in part, before the date that such entity became a **subsidiary** or after the entity ceases to be a **subsidiary**. This condition shall apply whether such **subsidiary** qualified as such either before or after the **inception date** of this Policy.

15. Assignment of this Policy

Your assignment of any right or interest under this Policy will only bind us if and when **our** written consent is endorsed hereon.

16. Authorization

The **named insured** is responsible for the assurance of payment of all premiums and retentions. In the event of a disagreement between any insured persons or entities under this Policy, the **named insured** will have exclusive authority to act on behalf of all with respect to the negotiation of settlements and the decision to appeal or not to appeal any judgment.

17. Your duty to pay the Policy premium

The **named insured** will pay the amount of premium stated on the Declarations to **us**. Twenty-five percent (25%) of the premium is deemed earned at inception. The premium may be adjusted at any time during the **policy period** based upon changes in the provisions of this Policy, as may be agreed upon by the **named insured** and **us**.

The **named insured** will pay the Policy premium in full to **us** within thirty (30) days of the **inception date** of this Policy, as detailed in Item 2., of the Declarations.

If the premium due under this Policy has not been paid to **us** within thirty (30) days from the **inception date** of this Policy (and, in respect of instalment premiums, by the date they are due), **we** shall have the right to cancel this Policy for non-payment of premium, in accordance with Condition 11., Cancellation, of this Policy.

If the premium due is paid in full to **us** before the notice period expires, the notice of cancellation shall automatically be revoked. If not, the Policy shall automatically terminate null and void ab initio (void from the beginning) at the end of the notice period.

18. Where and how to send notices

Except as otherwise provided in this Policy, all notices under any provision of this policy must be in writing and delivered as follows:

Notices to **you** will be delivered by prepaid express courier or certified mail to **your** address as stated in Item 1., of the Declarations. Such notices are deemed to be received and effective upon actual receipt by the addressee or three (3) days following the date such notices are sent, whichever is earlier.

Notices to **us** will be delivered by prepaid express courier or certified mail, facsimile, or electronic mail to the appropriate party at the street address, fax number, or email address, as applicable, set forth in Item 6.3., of the Declarations. Such notices are deemed to be received and effective upon **our** actual receipt or one (1) week following the date such notices are sent, whichever is earlier.

19. Sanctions

We shall not be deemed to provide cover and shall not be liable to pay any amounts under this Policy to the extent that the provision of such indemnification would expose **us** to any trade and economic sanctions law, prohibition, regulation, or restriction.

20. Worldwide coverage

The coverage afforded under this Policy applies anywhere in the world where legally permissible.

21. Currency and valuation

All monetary amounts under this Policy are expressed and payable in the currency set out in the Declarations. If no currency is stated, all amounts are payable in the currency of the United States (USD).

If a judgment is rendered or settlement is denominated under this Policy in a fiat currency other than the currency stated in the Declarations, payment under this Policy will be made in the Policy's stipulated currency and calculated at the rate of exchange published in the *Wall Street Journal* on the date the judgment becomes final, or the date the settlement agreement is executed.

Regarding Insuring Agreement 9: Business Interruption and Insuring Agreement 15: Reputational Harm, **we** will use the rate of exchange published in the *Wall Street Journal* on the date the **interruption** or **adverse media event** began.

For all covered losses of **cryptocurrency**, valuation will be calculated at the average United States Dollar (USD) ask price, of the three largest exchanges (by thirty (30) day trailing volume) which offer the relevant **cryptocurrency**/USD trading pair, as relevant, on the date the **insured event** occurred.

22. The process for any action you may take against us

No action will lie against **us** unless, as a condition precedent thereto, there has been full compliance with all of the terms of this Policy by **you**, nor until the amount of **our** obligation to pay has been fully determined either by judgment or award against **you** after trial or arbitration or by written agreement between **you**, **us**, and any claimants.

No person or organization will have any right under this Policy to join **us** as a party to any action against **you** to determine **your** liability, nor will **we** be impleaded by **you** or **your** legal representative.

23. Choice of Law

This Policy, and any dispute, controversy, or claim arising out of or relating to this Policy, shall be governed by, and construed in accordance with the laws of Oklahoma.

24. Dispute Resolution

- a. Each party shall attempt in good faith to promptly resolve all disputes or controversies that may arise out of or in connection with this Policy, whether arising before or after termination of this Policy by negotiations between **your** and **our** representatives who have authority to settle the controversy.
- b. If the parties cannot resolve a dispute arising out of or in connection with this Policy, either party shall have the right to commence a judicial proceeding. The courts of Oklahoma shall have exclusive jurisdiction over such proceedings.

25. Service of Suit

Service of process for any suit instituted against **us** concerning this Policy may be made upon **our** representative Kissel Straton & Wilmer LLP (KSW Law), 580 White Plains Road Ste. 500 Tarrytown, NY 10591, USA.

26. Words and titles within this Policy

Except for section and paragraph headings, all words in bold have a special meaning as outlined in the section titled Definitions. Whenever the singular form of a word is used in this Policy, the same shall include the plural when required by context.

The titles of paragraphs, sections, provisions, or endorsements of or to this Policy do not have special meaning, are provided for informational purposes only and are intended solely for convenience and reference and are not deemed in any way to limit or expand the provisions to which they relate.

27. Attribution of a cyber operations to a sovereign state

In determining the attribution of a **cyber operation** to a sovereign state, **we** will consider such objectively reasonable evidence that is available to **us**. This may include:

1. a formal declaration of **war** by the responsible governmental body of any other sovereign state against a sovereign state;
2. any Governmental body ordering actions that constitute the use of force against a sovereign state;
3. resolution or other formal action by the United Nations Security Council authorizing the use of force or economic sanctions against a sovereign State, or that results in the use of force by the North Atlantic Treaty Organization or any other equivalent international intergovernmental military or political alliance, against a sovereign state; or
4. formal or official attribution by the government of the sovereign state in which the **computer system** affected by the **cyber operation** is physically located to another sovereign state or those acting at its direction or under its control.

28. Complaints

Every effort is made to ensure that a high standard of service is provided. However, if **you** are not satisfied with the service **you** have received or if **you** have any questions or concerns about this Policy, **you** should, in the first instance, contact: connect@relminsurance.com.

NOVA**WEB3** CYBER AND TECHNOLOGY ERRORS & OMISSIONS

ENDORSEMENTS



ENDORSEMENT

Endorsement No: NOVAWEB32024-0.1-020

Policy Number: RUSPTEOCY7292025

Insured Name: Ephemera Global Inc.

Effective Date: July 13, 2025

PRIOR POLICY LIBERALIZATION ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. READ IT CAREFULLY.

It is hereby understood and agreed that:

To the extent that **loss** resulting from a **claim** first made, or **insured event** first discovered, during the **policy period** is not covered under this Policy but would have been covered under Policy Number RILPTEOCY7292024, then this Policy is amended to follow and be subject to the broader terms and conditions of Policy Number RUSPTEOCY7292025. This Endorsement does not amend or apply to:

1. any provision in this Policy addressing Limits of Insurance or Retentions;
2. Insuring Agreements or Coverage Parts specifically not purchased under this Policy;
3. Insuring Agreements or Coverage Parts that form part of this Policy, that were not purchased under the Policy listed above; or
4. any Endorsements added to this Policy with the intention of restricting coverage relative to the Policy listed above.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

ENDORSEMENT

Endorsement No: NOVAREB32024-0.1-064

Policy Number: RUSPTEOCY7292025

Insured Name: Ephemera Global Inc.

Effective Date: July 13, 2025

AMEND PERIOD OF RESTORATION (NUMBER OF DAYS) ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. READ IT CAREFULLY.

It is hereby understood and agreed that the definition of **period of restoration** in the DEFINITIONS section of the Policy is deleted and replaced with the following:

period of restoration

means the two hundred and seventy (270) day consecutive period of time that begins when the **interruption** is first discovered.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

ENDORSEMENT

Endorsement No: NOVAREB32024-0.1-066

Policy Number: RUSPTEOCY7292025

Insured Name: Ephemera Global Inc.

Effective Date: July 13, 2025

AMEND PROTECTION PERIOD (NUMBER OF DAYS) ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. READ IT CAREFULLY.

It is hereby understood and agreed that the definition of **protection period** in the DEFINITIONS section of the Policy is deleted and replaced with the following:

protection period

means the one hundred and eighty (180) day consecutive period of time that begins when the **adverse media event** is first discovered.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

ENDORSEMENT

Endorsement No: NOVAREB32024-0.1-063

Policy Number: RUSPTEOCY7292025

Insured Name: Ephemera Global Inc.

Effective Date: July 13, 2025

AMEND AUTOMATIC EXTENDED REPORTING PERIOD (NUMBER OF DAYS) ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. READ IT CAREFULLY.

It is hereby understood and agreed that paragraph 1. of condition **10. Extended reporting periods** in the CONDITIONS section of the Policy is deleted and replaced with the following:

10. Extended Reporting Periods

1. Automatic extended reporting period

An **extended reporting period** of sixty (60) days following the end of the **policy period** will be automatically granted at no additional premium. The Aggregate Policy Limit of Insurance during the automatic **extended reporting period** is part of and not in addition to the Aggregate Policy Limit of Insurance detailed in Item 3., of the Declarations.

No automatic **extended reporting period** is granted if the Policy has been cancelled for non-payment of premium or if **you** elect an Optional **extended reporting period** detailed in Condition 10.2.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

ENDORSEMENT

Endorsement No: NOVAREB32024-0.1-062

Policy Number: RUSPTEOCY7292025

Insured Name: Ephemera Global Inc.

Effective Date: July 13, 2025

AMEND CONDITION 14 (ACQUISITION THRESHOLD PERCENTAGE) ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. READ IT CAREFULLY.

It is hereby understood and agreed that condition **14. If the company acquires an entity during the policy period** in the CONDITIONS section of the Policy is deleted and replaced with the following:

14. If the company acquires an entity during the policy period

If the **company** acquires an entity during the **policy period** whose annual revenue does not exceed thirty percent (30%) of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary**.

However, if any such newly acquired or created entity's gross revenues exceed thirty percent (30%) of the **company's** combined annual gross revenues at the **inception date** of this Policy, coverage will only be provided if the **company** provides written notice to **us** of the creation or acquisition with any necessary underwriting information and pay any additional premium as **we** may require. This must all be done within ninety (90) days of such creation or acquisition.

Coverage will only be provided if **we**, in our sole discretion, agree to provide coverage and evidence it within an endorsement to this Policy. If no agreement is reached between the **company** and **us**, the newly created or acquired entity and its subsidiaries will not be considered insured under this Policy or have been insured at any time.

There is no coverage under this policy for any **claim** that occurred or **insured event** discovered in fact, in whole, or in part, before the date that such entity became a **subsidiary** or after the entity ceases to be a **subsidiary**. This condition shall apply whether such **subsidiary** qualified as such either before or after the **inception date** of this Policy.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.



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